

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 03/13/2026

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Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C22-00901
CASE NAME: SALEHOMOUM VS. BAHRAMI-DAGHIGH
*HEARING ON MOTION IN RE: SANCTIONS FOR FAILURE OF WADDINGTON TO OBEY RULES
FILED BY: SALEHOMOUM, MOJDEH
TENTATIVE RULING

PARTIES TO APPEAR

2. 9:00 AM CASE NUMBER: C22-00901

CASE NAME: SALEHOMOUM VS. BAHRAMI-DAGHIGH

***HEARING ON MOTION IN RE: MONETARY SANCTIONS FOR FAILURE OF OMID BAHRAMI TO OBEY RULES**

FILED BY: SALEHOMOUM, MOJDEH

TENTATIVE RULING

PARTIES TO APPEAR

3. 9:00 AM CASE NUMBER: C23-01109

CASE NAME: DOROTHY TUCKER COOK VS. PARDEEP KUMAR PURI

***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL OF RECORD**

FILED BY: DAVIS, KELIN

TENTATIVE RULING

The unopposed motion of Adamson Ahdoot LLP to be relieved as counsel for PLAINTIFF KELIN LAMAR DAVIS is granted.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

KELIN LAMAR DAVIS' counsel has complied with the provisions of this rule and statute providing notice to client and supporting his motion with a declaration articulating the reasons for withdrawal.

After reviewing the papers submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Plaintiff's Counsel to be Relieved as Counsel of Record. This motion is Granted.

The Court will execute the Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053) as submitted. The withdrawal is effective upon CHARLES WINDON, FOR ADAMSON AHDOOT LLP filing the proof of service of signed order on the client and all parties.

4. 9:00 AM CASE NUMBER: C23-01547

CASE NAME: DARIUSH KOUHI VS. AZAD AMIRI

***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL AS TO DAVID KOUHI**

FILED BY:

TENTATIVE RULING

The unopposed motion of Scott Hammel to be relieved as counsel for Dariush Kouhi, aka David Kouhi, is granted.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

David Kouhi's counsel has complied with the provisions of this rule and statute providing notice to client and supporting his motion with a declaration articulating the reasons for withdrawal.

After reviewing the papers submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Plaintiff's Counsel to be Relieved as Counsel of Record. This motion is Granted.

The Court will execute the Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053) as submitted. The withdrawal is effective upon attorney Scott Hammel's filing the proof of service of signed order on the client and all parties.

5. 9:00 AM CASE NUMBER: C24-00323
CASE NAME: SITEONE LANDSCAPE SUPPLY, LLC VS. WEDER CAMARGO
***HEARING ON MOTION IN RE: ENTRY OF JUDGMENT PURSUANT TO STIPULATION**
FILED BY: SITEONE LANDSCAPE SUPPLY, LLC
TENTATIVE RULING:

Plaintiff SiteOne Landscape Supply LLC's unopposed motion pursuant to CCP §664.6, for an order and entry of judgment enforcing the terms of a settlement agreement and stipulation between Plaintiff SiteOne and Defendant Weder De Silva Camargo, an individual doing business as Capitol Pavers and doing business as Capitol Interlocking Pavers; and 4 Fabiana Costa Ribero Morais, an individual doing business as Capitol Landscaping ("Defendants") pursuant to a signed Settlement Agreement and Stipulation dated on or around August 31, 2024 is granted. The Court will sign the submitted Proposed Order Granting Entry of Judgment and it will become effective upon notice of entry being served upon defendants.

6. 9:00 AM CASE NUMBER: C24-00447
CASE NAME: QRS REMODELING INC VS. PALUMBO DOMENICA
HEARING ON SUMMARY MOTION
FILED BY: CONAN, LINDSEY
TENTATIVE RULING:

Before the Court is a motion for summary adjudication filed by defendant Lindsey Conan. The motion is **denied**, as discussed below.

I. Background

Defendants, Palumbo Domenica and Lindsey Conan, employed plaintiff, QRS Remodeling, Inc., for the purposes of constructing improvements on defendants' property. QRS performed work and provided materials, but was not paid. QRS recorded a notice of mechanics lien and filed the present action in Alameda County. After the action was transferred to Contra Costa, defendants moved for summary adjudication in January of 2025. In their motion, defendants requested the Court invalidate the mechanic's lien recorded by plaintiff "on the grounds that the lien is invalid." That motion was denied by Judge Douglas on June 20, 2025.

In July, a case management conference was held and a trial date was set for February 17, 2026.

On December 23, 2025, defendant Lindsey Conan again moved for summary adjudication on the same issue as the previous motion (that the lien is invalid). A hearing was set for March 13, 2026. The proof of service filed on January 5, 2026 reflects that the motion papers were electronically served on plaintiff that same day (January 5, 2026). At the time the papers were served, only 67 days remained prior to the hearing date. No opposition papers were received.

Parties appeared at the issue conference on February 6, 2026, the Court informed parties that the trial would be re-set to accommodate the summary judgment hearing, absent some sort of ex parte appearance by plaintiff to strike the motion. No such ex parte was filed and a new trial date has been re-set for April 21, 2026.

II. Summary Adjudication Standard

With respect to both motions for summary judgment and motions for summary adjudication, "[n]otice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing." (Code Civ. Proc., § 437c (a)(2).)

To prevail on a motion for summary adjudication (as with summary judgment), the moving party must show lack of any triable issues as to any material fact, and entitlement to judgment as a matter of law. (Code Civ. Proc., § 437c(c).) A motion for summary adjudication must completely dispose of a cause of action, affirmative defense, claim for damages, or issue of duty. (Code Civ. Proc., § 437c(f)(1).)

"A party shall not move for summary judgment based on issues asserted in a prior motion for summary adjudication and denied by the court *unless* that party establishes, to the satisfaction of the court, newly discovered facts or circumstances or a change of law supporting the issues reasserted in the summary judgment motion." (Code Civ. Proc., § 437c (f)(2), *emphasis added*.)

III. Motion for Reconsideration Standard

A motion for reconsideration pursuant to Code of Civil Procedure, section 1008 must be based upon new or different facts, circumstances, or law. "The burden under section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it" at the original hearing. (*Dickson v. Mann* (2024) 103 Cal.App.5th 935, 951.)

IV. Discussion

The motion must be denied on at least two grounds. It was not filed with sufficient notice and

it shows no newly discovered facts or circumstances, or a change in the law.

A. Motion is Untimely

The notice period contemplated by the summary judgment statute is strictly applied. (See *McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 114-118 [court's inherent power does not authorize shortening notice period]; accord, *Urshan v. Musicians' Credit Union* (2004) 120 Cal.App.4th 758, 763-766; see also, *Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1267-68 [failure to give minimum notice not cured by continuance].) The motion was filed on December 23rd, but not served until January 5th, 67 days prior to the hearing date. This is less than the required 81 day notice period required by Code of Civil Procedure, § 437c (a)(2). The motion must therefore be denied on the grounds that it was untimely filed.

B. Motion Presents No New Facts, Circumstances, or Change in the Law

A party may not file a written motion to reconsider that has procedural significance if it does not satisfy the requirements of Cal. Code Civ. Proc. § 437c(f)(2) or § 1008. (*Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1108.)

As in the previous motion, defendant seeks a judicial determination that the lien is invalid as a matter of law. Defendant acknowledges that the motion is one for reconsideration pursuant to Code of Civil Procedure section 1008. Defendant argues the previous motion for summary adjudication was denied solely on the basis that there was not separate statement and, because this motion contains such separate statement, the Court “is required to reach the merits.” (Memorandum of Points and Authorities in Support of Motion, 1:25-27; 3:19.)

Defendant provides no discussion of new or different facts or law. In fact, defendant presents the same declaration previously filed. (*Id.* at 2:1-2.)

Defendant’s representation regarding the basis for denial is also contradicted by the Court’s minutes from June 23, 2025, which adopted the uncontested tentative ruling as the order of the Court. The ruling states, in relevant part:

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 845, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) Even where a motion for summary judgment is unopposed, or the opposition is flawed, a court cannot grant summary judgment unless the moving party meets its initial burden. (See *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 305.)

[...]

[D]efendant does not show as a matter of law that the value should be less than the lien amount.

While the June order went on to note that “no separate statement was filed in support of the motion” and that “the lack of separate statement is itself sufficient grounds to deny the motion,” this

was not the only grounds on which the motion was denied, contrary to defendant's representation in the present motion.

7. 9:00 AM CASE NUMBER: C24-02701

CASE NAME: ALYSS DORESE VS. AIDEN CIANI

***HEARING ON MOTION IN RE: TO STRIKE PORTIONS OF 1ST AMENDED CROSS COMPLAINT**

FILED BY: DORESE, ALYSS

TENTATIVE RULING:

Plaintiff and Cross-Defendant Alyss Dorese' special motion to strike allegations from the First Amended Cross-Complaint (FAXC) is granted in part. The Court orders the following paragraphs stricken from the complaint: paragraphs 13-25, 31-32, 49(c) and 60(a). All causes of action remain in the cross-complaint based upon the remaining allegations.

Background

On October 8, 2024, Plaintiff Dorese filed a complaint against Defendant Aiden Ciani for various landlord-tenant related torts, including breach of the warranty of habitability and related causes of action, a rent increase in violation of the Richmond Rent Control Ordinance and retaliation. Dorese alleges that she had a residential tenancy for a property in Richmond starting in 2007.

Ciani filed a cross-complaint on September 15, 2025, and then filed an amended cross-complaint on October 14, 2025. In the FAXC, Ciani alleges that he is the owner of the real property where Dorese is a tenant. (FAXC ¶¶1, 3-4.) Although not clearly alleged, it appears that Ciani lives at or near the property where Dorese lives. Ciani alleges that Dorese engaged in a pattern of hostile and discriminatory conduct towards Ciani, his family and his guests. (FAXC ¶¶5-12.)

Ciane alleges that in August 2025, Ciani (through counsel) told Dorese (through counsel) that she would need to temporarily relocate for 3-4 weeks so that necessary electrical upgrades could be done at the property. (FAXC ¶13.) Between August 28 and September 12, 2025, Ciani offered several relocation options and tried to get dates confirmed from Dorese, but Ciani alleges that Dorese refused to accept any of the location options or provide dates when she would relocate. (FAXC ¶¶13-24.) Ciani alleges that Dorese prevented him from proceeding with the temporary relocation because the Richmond Rent Ordinance requires the relocation notice to include the address of a comparable unit. (FAXC ¶25.)

Ciani listed the property for sale, but Dorese refused to allow real estate showings when she was not present. (FAXC ¶26.) For approximately two weeks, Dorese refused to allow any showings, citing illness. (FAXC ¶27.) During escrow, Dorese made false complaints regarding the furnace. On November 28, 2024, Ciani's contractor discovered that the furnace pilot had been deliberately turned off and Ciani's agent confirmed that the furnace was fully operational. (FAXC ¶28.) Dorese also refused to sign a tenant estoppel certificate, undermining the sale. (FAXC ¶29.) Following a 60-day notice of owner move-in on November 15, 2022, Dorese falsely claimed that she required

hospitalization for a tumor surgery, but no such surgery occurred. (FAXC ¶¶31-32.)

Ciani is suing Dorese for the following causes of action: (1) private nuisance, (2) breach of the lease, (3) IIED, (4) negligence, (5) intentional/ fraudulent misrepresentation and (6) intentional interference with prospective economic relations.

Dorese filed this special motion to strike portions of the first amended cross-complaint included in the third cause of action for intentional infliction of emotional distress; the fifth cause of action for intentional/fraudulent misrepresentation and the sixth cause of action for intentional interference with prospective economic relations. In total, Dorese wants to strike the following paragraphs in the FAXC: 13 – 25, 28, 29, 31, 32, 49(c) & (d), 59 - 65 and 69(c) & (d).

Standard of Review

“Resolution of an anti-SLAPP motion [or special motion to strike] involves two steps. First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. [Citation.] If the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success. We have described this second step as a ‘summary-judgment-like procedure.’ [Citation.]” (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384-385.)

Protected activity is defined in the statute to be: “(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (Code of Civil Procedure §425.16(e).)

“[M]ixed claims, which are based on allegations of both protected and unprotected activity, are subject to the first step of the anti-SLAPP analysis because a plaintiff cannot shield ‘particular allegations of protected activity, themselves sufficient to give rise to a claim for relief, from a motion to strike by intermingling them with unprotected acts.’ [Citations.]” (*Golden Gate Land Holdings LLC v. Direct Action Everywhere* (2022) 81 Cal.App.5th 82, 92; see also, *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1010.) In a mixed cause of action, the Court “should analyze each claim for relief—each act or set of acts supplying a basis for relief, of which there may be several in a single pleaded cause of action—to determine whether the acts are protected and, if so, whether the claim they give rise to has the requisite degree of merit to survive the motion.” (*Bonni, supra*, 11 Cal.5th 995, 1010.)

Claims are not mixed where the allegations of protected activity merely provide context, without supporting a claim for recovery, and such incidental or extraneous allegations cannot be stricken under the anti-SLAPP statute. (*Golden Gate Land Holdings LLC, supra*, 81 Cal.App.5th at 92;

Baral, supra, 1 Cal.5th at 394.)

“At this first step, courts are to ‘consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability.’ (*Park [v. Board of Trustees of California State University]* (2017)) 2 Cal.5th at p. 1063.) The [cross-]defendant's burden is to identify what acts each challenged claim rests on and to show how those acts are protected under a statutorily defined category of protected activity. [Citation.]” (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009.) For each cause of action, the Court must look to “the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability.” (*Park, supra*, 2 Cal.5th 1057, 1063.)

The Court determines whether a complaint involves protected activity by reviewing the allegations in the complaint and what alleged facts support each claim. The moving party cannot change the allegations in the challenged pleading to suit their arguments. (See, e.g. *Central Valley Hospitalists v. Dignity Health* (2018) 19 Cal.App.5th 203, 217, 218-219 [rejecting defendant’s argument that the court should consider defendant’s evidence of what plaintiff’s claim was about].) However, the Court can consider the evidence offered by the parties when deciding whether the statements are protected activity. (See, e.g. *D.C. v. R.R.* (2010) 182 Cal.App.4th 1190, 1226.; *Nygård, Inc. v. Uusi-Kerttula* (2008) 159 Cal.App.4th 1027, 1042.)

At the second step, “the burden shifts to the [cross-complainant] to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated. The court, without resolving evidentiary conflicts, must determine whether the plaintiff’s showing, if accepted by the trier of fact, would be sufficient to sustain a favorable judgment. If not, the claim is stricken.” (*Baral, supra*, 1 Cal.5th at 396.)

Analysis

The Court’s first task on prong one is to determine what allegations, if any, constitute protected activity. Then, the Court can determine if the protected activity arises from any causes of action, or is incidental to the claims.

There are four allegations of potential protected activity identified in the motion: (1) relocation communications (paragraphs 13-25, 49(c)); (2) furnace complaints (paragraphs 28-29, 49(d), 60(b) and 69(c)); (3) response to 60-day notice (paragraphs 31-32, 60(a)) and (4) refusal to sign tenant estoppel certificate and refusing to allow real estate showings at the property (paragraphs 26, 27 and 29, 69(d)).

As to the relocation communications (paragraphs 13-25 and 49(c)), Dorese argues that these are communications between the parties’ attorneys while this lawsuit was pending and are protected activity under section (e)(2), “[a]ny written or oral statement or writing made in connection with an issue under consideration or review by a... judicial body”. “Statements made ‘in anticipation of a court action’ may be entitled to protection under the anti-SLAPP statute. [Citation.] “[J]ust as communications preparatory to or in anticipation of the bringing of an action or other official proceeding are within the protection of the litigation privilege ... [,] ... such statements are equally

entitled to the benefits of section 425.16.” [Citation.]” (*Trinity Risk Management, LLC v. Simplified Labor Staffing Solutions, Inc.* (2021) 59 Cal.App.5th 995, 1005; *accord* *Neville v. Chudacoff* (2008) 160 Cal.App.4th 1255, 1268.)

Here, the communications are alleged to have occurred in August and September 2025. Dorese filed her complaint in this case for habitability defects in October 2024. Although the complaint does not include allegations on electrical issues (beyond a lack of heat), Dorese’ evidence shows that the parties’ attorneys were discussing the electrical issues and related temporary relocation. (Beene dec. ¶¶3-7 and ex. A; Wolff dec. ¶¶2-4.)

Given the nature of the attorneys’ communications, along with the pending habitability lawsuit by Dorese, the Court finds that the relocation communications in August and September 2025 are either statements made in this lawsuit or they are prelitigation communications for a likely amendment in this case to specifically include the electrical issues in the habitability claim. In either case, these communications were made in connection with an issue under consideration or review by a judicial body and as such constitute protected activity.

As to Dorese’ complaints about the furnace (paragraphs 28-29, 49(d), 60(b) and 69(c)) she argues that her communications with a prospective purchaser of the property regarding habitability is protected activity as habitability is a “. . . public issue or an issue of public interest”. (Cal. Code of Civ. Proc. § 425.16(e)(4).)

For the “analysis under the catchall provision, subsection 425.16(e)(4), ‘First, we ask what “public issue or ... issue of public interest” the speech in question implicates—a question we answer by looking to the content of the speech. (§ 425.16, subd. (e)(4).) Second, we ask what functional relationship exists between the speech and the public conversation about some matter of public interest,’ a question we answer by examining the speech’s context. (*FilmOn.com Inc. v. DoubleVerify Inc.* (2019) 7 Cal.5th 133, 149–150.)

Dorese relies on *Cross v. Cooper* (2011) 197 Cal.App.4th 357. In *Cross*, a tenant told a potential buyer of the property that a registered sex offender lived nearby. The landlord later sued the tenant for tortious interference. The court held that the tenant’s statements constituted protected activity because “[t]here is a strong and widespread public interest in knowing the location of registered sex offenders (Pen. Code, §§ 290, subd. (a), 290.03, subd. (a); Civ. Code, § 2079.10a)” (*Id.* at 358.)

Cross held that discussing the location of the registered sex offender was a matter of public interest, based upon a thorough analysis of the issue. Here, Dorese has not provided evidence that a tenant’s habitability issues are a matter of public interest. (Providing a hyperlink in the brief is inappropriate as the Court does not click on such links.) Nor has Dorese provided a discussion of the relevant laws to otherwise convince this Court that habitability issues are a matter of public interest. Further, *Cross* was decided before the California Supreme Court identified the two-part test to determine protected activity under section (e)(4).

Even if the Court were to conclude that habitability issues, such as broken furnace, are

matters of public interest, Dorese has not shown that there is a functional relationship exists between the speech and the public conversation about some matter of public interest, as required by *FilmOn*.

The Court finds that Dorese has not met her burden of showing that the furnace complaints constitute protected activity.

As to the claim that Dorese falsely claimed she had a medical issue in response to the 60-day notice (paragraphs 31-32, 60(a)), Dorese argues that her response is protected under section 425.16(e)(1) and (2). The filing of an unlawful detainer action constitutes protected activity under section 425.16(e)(1). *Birkner v. Lam* 156 Cal.App.4th 275 held that the service of a termination notice in anticipation of an unlawful detainer constitutes protected activity. (*Id.* at 281.) Similarly, *Feldman v. 1100 Park Lane Associates* (2008) 160 Cal.App.4th 1467 held that service of a 3-day notice to pay or quit is protected activity. (*Id.* at 1480-81.) Finally, as Dorese points out, communications *in response to protected activity* are themselves protected. (*Gallanis-Politis v. Medina* (2007) 152 Cal.App.4th 600, 611.)

Ciani argues that “ ‘prelitigation communication is privileged [or protected activity] only when it relates to litigation that is contemplated in good faith and under serious consideration.’ [Citation.]” (*Nirschl v. Schiller* (2023) 91 Cal.App.5th 386, 402.) He also points out that “Conduct does not become protected activity simply because it follows protected activity. (See *City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 78 (*City of Cotati*) [‘That a cause of action arguably may have been triggered by protected activity does not entail that it is one arising from such.’];...” (*Gazal v. Echeverry* (2024) 101 Cal.App.5th 34, 41.)

Here, the service of a 60-day notice of termination is protected activity. While not every action following a protected communication will constitute protected activity, here Dorese is alleged to have directly responded to the 60-day notice by claiming a medical reason that would delay or defeat the 60-day notice. The Court finds that Dorese’s response to that notice also constitutes protected activity.

As to the allegations that Dorese refused to sign the tenant estoppel certificate (paragraphs 29 and 69(d)), Dorese argues that her refusal to sign the estoppel certificate is connected to the pending litigation because the certificate would require Plaintiff to admit that her pending habitability lawsuit is unwarranted. The estoppel certificate is a two page form from the California Association of Realtors where the tenant is supposed to fill out various information about the tenancy, including the terms of the lease and who pays the utilities. On page two, there are several representations, including “27. All obligations of Housing Provider under the Lease have been fully performed and Housing Provider is not in default under any term of the Agreement. Tenant has no defenses, off-sets or counterclaims to the payment of rent or other amounts due from Tenant to Housing Provider under the Lease.” (Dorese dec. ¶13 and ex. F.)

The Court does not find Dorese’s argument persuasive. Dorese could have completed the form, but crossed out paragraph 27 or made a notation on the form that there was a pending habitability lawsuit. *Birkner, supra*, 156 Cal.App.4th 275 does not help Dorese’s argument on this

issue.

The Court is not convinced that the refusal to sign an estoppel certificate is sufficiently connected to the pending lawsuit to constitute a communication made in connection with a matter under consideration by the judiciary.

In summary, the Court finds that the following actions constitute protected activity: the relocation communications (paragraphs 13-25 and 49(c)) and response to 60-day Owner Move-In (FAXC ¶¶ 31-32 and 60(a)).

In the third cause of action for IIED, Dorese seeks to strike allegations regarding the relocation communications (FAXC ¶49(c)) and interfering with the sale of property by refusing access and making false complaints about the furnace (FAXC ¶49(d).) The Court has found that paragraph 49(c) on the relocation communications constitutes protected activity. The Court also finds that the IIED cause of action (at least a portion of it) arises from those allegations and that the relocation communication allegations are not incidental to this cause of action. Therefore, the Court finds that the IIED cause of action based upon paragraph 49(c) arises from protected activity. There are other allegations to support an IIED cause of action and therefore, the Court will consider whether to strike paragraphs 13-25 and 49(c) on prong two.

In the fifth cause of action for fraud, Dorese seeks to strike the entire cause of action, which is based on the following alleged misrepresentations: false medical complaint in response to the 60-day notice and false complaints regarding the furnace. (FAXC ¶60(a), (b).) The Court has found that paragraph 60(a) on the response to the 60-day notice constitutes protected activity. The Court also finds that the fraud cause of action (at least a portion of it) arises from those allegations and thus the response to the 60-day notice allegations are not incidental to this cause of action. Therefore, the Court finds that the fraud cause of action based upon paragraph 60(a) arises from protected activity. There are other allegations to support the fraud cause of action and therefore, the Court will consider whether to strike paragraphs 31-32 and 60(a) on prong two.

In the sixth cause of action for intentional interference with prospective economic relations, Dorese seeks to strike allegations regarding false furnace complaints and refusing to sign the tenant estoppel certificate. (FAXC ¶69(c), (d).) As explained above, these actions do not constitute protected activity. Paragraph 69(d) also includes allegations regarding Dorese's refusal to allow real estate showings due to illness and refusal to use the SupraBox for showings (FAXC ¶¶26, 27), however, Dorese has made it clear that she is not challenging those allegations. (Reply p.2:8-10.)

Turning to prong two, the Court must decide if Ciani can show a probability of prevailing on his third cause of action as it relates to the relocation communications and on his fifth cause of action as it relates to Dorese's response to the 60-day notice, which are included in paragraphs 13-25, 31-32, 49(c) and 60(a). Ciani has the burden of showing that the claims that arise from protected activity are legally sufficient and factually substantiated. Ciani was required to provide evidence for each claim under the prong-two analysis, and he has failed to include any evidence. Therefore, the Court finds that Ciani has not met his burden on prong-two and orders the following paragraphs stricken from

the complaint: paragraphs 13-25, 31-32, 49(c) and 60(a).

Dorese requests attorney fees for prevailing on this motion. Dorese may file a motion for fees. That motion should limit any request for fees to the issues upon which she prevailed. On a request for fees on a partially successful special motion to strike the court should consider the extent to which the “motion changed the nature and character of the lawsuit in a practical way.” (*Mann v. Quality Old Time Service, Inc.* (2006) 139 Cal.App.4th 328, 345 [discussing factors to consider when awarding fees on a partially successful special motion to strike].)

8. 9:00 AM CASE NUMBER: C24-03193
CASE NAME: MATTHEW BERNIER VS. JANEEN NEGHERBON
***HEARING ON MOTION IN RE: LEAVE TO FILE SECOND AMENDED COMPLAINT**
FILED BY: BERNIER, MATTHEW J.
TENTATIVE RULING:

Plaintiffs/cross-defendants Matthew J. Bernier and Patricia Mitchell Bernier as trustees of the Bernier Family Trust (“Plaintiffs”) own and reside on property located at 3237 Camino Diablo, Lafayette (the “Dominant Property”). Defendants/cross-complainants Janeen Negherbon and Ben Paramonte (“Defendants”), reside on property next to Plaintiffs, which is owned by Janeen Negherbon, and is located at 3235 Camino Diablo, Lafayette (the “Subservient Property”). This lawsuit relates to a dispute over an easement that involves the properties and is focused on the easement’s size, scope, and proper uses. Both parties assert claims for quiet title, trespass, private nuisance, declaratory relief, and injunctive relief against one another, and Defendants also assert a claim for negligence. Plaintiffs have filed a motion for leave to file a second amended complaint, which Defendants oppose.

For the reasons discussed below, the Court **GRANTS** Plaintiffs’ motion for leave to file a second amended complaint.

Background

Plaintiffs and Defendants are neighbors who are currently in a dispute relating to an easement that cuts through Defendants’ property in order to provide Plaintiffs with access to the nearest road. Plaintiffs purchased the Dominant Property around December 2014, and Defendant Janeen Negherbon bought the Subservient Property in February 2018. Plaintiffs allege that a gate and fence have been in place at the easement since 1981.

The parties appear to have lived in relative harmony as neighbors from 2018 until July of 2024, when Defendants started paying more attention to the easement, the land around it, and the property lines. Defendants take issue with the easement because the fence and gate interfere with their access to and also cover portions of the Subservient Property. Defendants assert that the easement is specifically for ingress, egress, and utilities, and not for parking, recreation and sports, loitering, gathering, or letting dogs run loose. Defendants placed a recycle bin on a property line of the easement in order to show where the Subservient Property began, and so to stop Plaintiffs’ guests from parking on the Subservient Property. Hostilities continued to increase, resulting in the instant litigation.

Plaintiffs filed a complaint on November 25, 2024, asserting the following claims against Defendants: (1) quiet title; (2) trespass; (3) private nuisance; (4) declaratory relief; and (5) injunctive relief. Plaintiffs filed a first amended complaint on January 13, 2025, which asserted the same five claims as the original complaint. On February 18, 2025, Defendants filed a cross-complaint asserting claims for: (1) quiet title; (2) trespass to land; (3) private nuisance; (4) negligence; (5) declaratory relief; and (6) injunctive relief.

On September 9, 2025, Plaintiffs filed a substitution of attorney form that substituted their prior attorney with their present one, Eric C. Schaffer, of Bowie & Schaffer. On October 30, 2025, at a trial setting conference, the trial was set for May 5, 2026.

Legal Standard for Motion for Leave to File an Amended Pleading

Code of Civil Procedure § 473(a)(1) provides the Court discretion to permit a party to amend its pleadings. There is “a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations]...” (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 487.) Leave to amend can be denied where there is “‘inexcusable delay and probable prejudice to the opposing party’... [Citation.]” (*Ibid.*) “[I]t is a rare case in which ‘a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.’” (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530 quoting *Guidery v. Green* (1892) 95 Cal. 630, 633.)

“Generally, leave to amend must be liberally granted [Citation], provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation.” (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.)

A party opposing amendment must demonstrate that permitting the amendment will cause it to suffer prejudice. (*Rickley v. Goodfriend* (2013) 212 Cal.App.4th 1136, 1159; see also *Mesler v. Bragg Mgmt. Co.* (1985) 39 Cal.3d 290, 296-297.) “Motions to amend are appropriately granted as late as the first day of trial ... or even during trial ... if the defendant is alerted to the charges by the factual allegations, no matter how framed ... and the defendant will not be prejudiced.” (*Rickley*, 212 Cal.App.4th at 1159 quoting *Honig v. Financial Corp. of America* (1992) 6 Cal.App.4th 960, 965.)

Discussion

Procedural Requirements

A motion to amend a pleading must include a copy of the proposed amended pleading, serially numbered to differentiate it from previous pleadings, and it must state: (1) what if any allegations are proposed to be deleted; (2) what if any allegations are proposed to be added; and (3) where, by page, paragraph, and line number the allegations to be added or deleted are located. (Cal. Rules of Court, Rule 3.1324(a).) A motion to amend a pleading must also have attached a declaration that specifies the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and why the request to amend was not made earlier. (Cal. Rules of Court, Rule 3.1324(b).)

Here, Plaintiffs have complied with the procedural requirements because they have included a redlined copy of the proposed second amended complaint that shows what they propose adding and

deleting and where. (Eric C. Schaffer Declaration ISO Motion for Leave, ¶ 3, Exh. 2.) Plaintiffs also have included a declaration that specifies the effect of the amendment (*id.*, at ¶¶ 4-5), why the amendment is necessary and proper (*id.*, at ¶ 4), when the facts giving rise to the amended allegations were discovered (*id.*, at ¶¶ 4-5), and why the request was not made earlier (*id.*, at ¶¶ 5-7).

Substantive Analysis

Defendants oppose Plaintiffs' motion for leave to amend by arguing: (1) that Plaintiffs failed to exercise reasonable diligence and that their delay in filing the motion for leave was unreasonable; and (2) that the proposed amendment would prejudice Defendants. (Opposition, pp. 6-9.)

Diligence and Unreasonable Delay

Defendants argue that the Court should deny Plaintiffs' motion because the facts were available and reasonably knowable at the outset of the litigation and Plaintiffs failed to include the present allegations in either the original complaint or the amended complaint. (Opposition, pp. 6-7.)

Plaintiffs respond that the cases cited by Defendants are distinguishable in that *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, involved a request made after discovery had closed on the eve of trial and *Melican v. Regents of University of Cal.* (2007) 151 Cal.App.4th 168, involved a request to amend a complaint that was made orally at a hearing on a motion for summary judgment. Plaintiffs point out that this case was filed in November 2024 and has only been fully at issue since April 2025, and discovery has not yet closed. (Reply, p.4.)

The Court finds that Plaintiffs' delay in this case is not unreasonable. This case has been pending for less than one year and four months, and this matter is quite far from the 3-year discretionary dismissal and 5-year mandatory dismissal deadlines set by statute. (Code Civ. Proc., §§ 583.420, 583.310.) Further, new counsel stepped in for Plaintiffs on September 29, 2025, less than two months before the court set the May 2026 trial date, and Plaintiffs' new counsel sent a letter to counsel for Defendants asking to stipulate to the filing of a second amended complaint as soon as December 16, 2025, which was less than 3 months later. (Eric C. Schaffer Declaration ISO Reply, ¶ 9.)

Finally, even if there is unreasonable delay, "it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment." (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

Prejudice

Defendants argue that "[p]rejudice may be found where the amendment would: (1) require reopening discovery; (2) introduce new legal theories late in litigation; (3) necessitate additional depositions; (4) undermine litigation strategy already developed; or (5) deprive the opposing party of substantive defenses." (Opposition, p. 8:12-15, citing *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 487-488.) Defendants assert that Plaintiffs' proposed SAC would introduce various new legal theories and factual allegations very late in the litigation, which would result in new responsive pleadings, new written discovery, third party depositions, additional meet and confer efforts and motion practice, and the retaining of additional experts and/or revising of expert disclosures and reports. (Opposition, pp. 8:26-9:7.) Defendants argue that this would cause them to

incur significant additional costs. (*Id.*, at p. 9:7-8.)

Plaintiffs contest Defendants' portrayal and argue that Defendants "do not cite to any actual potential prejudice other than being subject to legally viable causes of action and having to incur the expense of preparing for trial." (Reply, p. 3:10-11.) Plaintiffs point out that this case has only been at issue for 10 months and that party depositions have not yet taken place, discovery remains open, and expert witnesses have not yet been disclosed. (*Id.* at 3:21-24.) The Court agrees with Plaintiffs.

The Court finds that although the initial trial date is approaching, this is not an instance of being "late" in the litigation as this case has only been pending since November 25, 2024. The Court finds that Defendants needing to file a new responsive pleading, conduct further discovery, and update expert opinions are not sufficient to overcome the policy favoring amendment. The *Magpali* case cited by Defendants is distinguishable because there the jury had been impaneled, "counsel, the parties, the trial court, and the witnesses ha[d] blocked the time," and the addition of the amended claim "would have necessitated, at the very least a continuance to allow [Defendant] to depose new witnesses." (*Magpali, supra*, 48 Cal.App.4th at 487-488.) In the instant case, no jury has been impaneled, and both sides are in a position to adjust to a new trial date should this amendment be permitted. "[D]iscretion should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit." (*Kittredge Sports Co. v. Sup. Ct.* (1989) 213 Cal. App. 3d 1045, 1047.) "The trial court has discretion to permit or deny the amendment of the complaint, but instances justifying the court's denial of leave to amend are rare." (*Armenta ex rel. City of Burbank v. Mueller Co.* (2006) 142 Cal.App.4th 636, 642.) The Court finds that this is not one of those rare instances where denial of leave to amend is justified.

Continuation of Trial Date

Defendants ask the Court to continue the trial date and all associated deadlines 180-240 days if the Court grants the motion for leave to amend. (Opposition, pp. 9:24-10:9.) Plaintiffs assert that they would prefer to keep the current trial date but would agree to a continued trial date as a condition for the filing of the second amended complaint. (Reply, p. 5:10-14.) Plaintiffs ask that the continuance be limited. (*Ibid.*)

With trial scheduled for less than two months after hearing on this motion, the Court finds that Defendants would not have time to properly pursue discovery on the new allegations and theories without a continuance of the trial date. "[I]f an amendment is appropriate the trial Court should continue the trial if necessary, even if the matter is on fast track." (*Honig v. Financial Corp. of America* (1992) 6 Cal. App. 4th 960, 967.)

Ruling on the Motion for Leave to Amend

Plaintiffs' motion for leave to amend is **GRANTED**. The Court orders as follows:

- 1) The **May 5, 2026, trial date is vacated**.
- 2) Plaintiffs must file their proposed second amended complaint within 10 calendar days of notice of entry of this order.

- 3) Defendants' response thereto shall be filed per Code.
- 4) **The Parties are ORDERED to appear at a Case Management/Trial Setting Conference on Thursday, May 14, 2026, at 8:30 a.m., in Department 32**, to discuss the resetting of trial. Each party is ordered to file and serve an updated Case Management Conference Statement 15 days in advance of May 14, 2026.

9. 9:00 AM CASE NUMBER: C24-03360
CASE NAME: LISA LOPEZ VS. PETER DEMPSEY
HEARING ON DEMURRER TO: ANSWER
FILED BY: LOPEZ, LISA
TENTATIVE RULING:

Notice of Settlement of Entire Case filed. Hearing vacated.

10. 9:00 AM CASE NUMBER: C25-00983
CASE NAME: DARCELL KELLY VS. EDDIE DRUMMER
HEARING ON DEMURRER TO: CROSS COMPLAINT
FILED BY: KELLY, DARCELL
TENTATIVE RULING:

Plaintiff and cross-defendant Darcell Kelly a.k.a. Darcell Purefoy ("Cross-Defendant") brings this demurrer to the Cross-Complaint of defendant and cross-complainant Eddie Drummer ("Cross-Complainant").

Cross-Defendant argues that that Cross-Complainant has failed to plead sufficient facts to support any of their causes of action, that all the causes of action are time barred, and that the first cause of action for breach of contract is barred by the statute of frauds. (Demurrer, pp. 1-2.) Cross-Defendant asks the Court to sustain their demurrer in its entirety, without leave to amend. (Demurrer MPA, p. 9.)

For the reasons discussed below, the Court sustains Cross-Defendant's demurrer to the first (breach of contract), second (fraud), and third (unjust enrichment) causes of action, with leave to amend. Cross-Complainant may file and serve an amended cross-complaint within 20 days of notice of entry of this order. (Code Civ. Proc. (CCP), §472b; California Rules of Court (CRC), rule 3.1320(g).)

Meet and Confer

The meet and confer requirement has been satisfied. (Christopher B. Lewis Decl. ISO Demurrer, ¶¶ 4-7; CCP, § 430.41.)

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "We also accept as true facts which may be inferred from those expressly alleged."

(*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges “the sufficiency of the allegations in a complaint as a matter of law,” not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (*Id.* at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a “court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice.” (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) “[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff.” (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

Procedural Background

As alleged by Cross-Complainant, in April 2019, Cross-Complainant and Cross-Defendant agreed that Cross-Defendant would provide assistance to Cross-Complainant by helping him acquire financing to buy real property at 1748 Landana Drive, in Concord, California (the “Property”), by being listed as a buyer and owner in joint tenancy of the Property, despite not having any actual interest in the Property. (Cross-Complaint, ¶ BC-1.) Cross-Complainant would live in the Property and be responsible for the mortgage payment, taxes and insurance. (*Ibid.*) Around February 25, 2023, Cross-Defendant demanded that Cross-Complainant obtain a mortgage for the Property in their own name and remove her name from the deed and the loan. (Cross-Complaint, ¶ BC-2.) Cross-Complainant refused to comply with Cross-Defendant’s demand.

On April 8, 2025, Cross-Defendant filed the instant lawsuit seeking a partition by sale of the Property and claiming that she is entitled to 50% of the current net value of the Property. In the complaint, Cross-Defendant alleges that a grant deed transferring the Property to her as a joint tenant was recorded on April 23, 2019. She also alleges that around February 25, 2023, she “requested by a written demand that [Cross-Complainant] either (1) obtain a mortgage for the property that removes [her] name from the loan and deed; (2) sell the property and divide the net proceeds equally; or (3) go to court and have a partition order granted by the judge for a forced dissolution of the joint tenancy. In response to this written demand, [Cross-Complainant] has repeatedly stated that he would not sell the property and has threatened the life of [Cross-Defendant] and her son in response.” (Complaint, ¶ 15.)

On September 11, 2025, Cross-Complainant filed the Cross-Complaint at issue, alleging causes of action for breach of contract, fraud, and unjust enrichment.

Discussion

Breach of Contract: First Cause of Action

Cross-Defendant argues that Cross-Complainant’s first cause of action for breach of contract fails because the Cross-Complaint does not properly allege a contract, fails to plead all the requisite elements, and is barred by the statute of frauds. (Demurrer MPA, pp. 4:10-7:22.)

Oral, Written, or Implied by Conduct

Cross-Defendant argues that the Cross-Complaint does not properly allege a contract “because it does not allege whether the purported contract was oral or written.” (Demurrer MPA, p. 5:2-3.) Cross-Complainant concedes this point in the opposition. (Opposition, p. 5:2-3 [“Plaintiff concedes that the cause of action does not state whether the contract was oral or written.”].)

A “complaint must indicate on its face whether the contract is written, oral, or implied by conduct.” (*Otworth v. Southern Pac. Transportation Co.* (1985) 166 Cal.App.3d 452, 458-459.) Failure to do so leaves a complaint or cross-complaint subject to being challenged by a demurrer. (CCP, § 430.30, subd. (g).)

The Cross-Complaint here was submitted on the Judicial Council form PLD-C-001. On the page alleging breach of contract, Cross-Complainant checked the checkbox to indicate the contract was “oral.” (Cross-Complaint, p. 3, ¶ BC-1.) Cross-Complainant’s concession notwithstanding, the Court will overrule Cross-Defendant’s argument on this issue.

Elements for Breach of Contract Claim

“The standard elements of a claim for breach of contract are ‘(1) the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) damage to plaintiff therefrom. [Citation.]’ ” (*Wall Street Network, Ltd. v. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1178.) With respect to pleading “the contract,” this entails “setting forth the elements of a contract under Civil Code section 1550: ‘(1) parties capable of contracting; (2) their consent; (3) a lawful object; and (4) sufficient cause or consideration.’ ” (*O’Byrne v. Santa Monica-UCLA Medical Center* (2001) 94 Cal.App.4th 797, 806-807.)

Cross-Defendant argues that this cause of action “fails to properly allege that a contract existed at all because there is insufficient allegations plead to demonstrate that any consideration, much less whether it was bargained for in exchange for Purefoy’s alleged agreement to ‘provide assistance to plaintiff in the acquiring of financing so that plaintiff could purchase the property’ was ever exchanged.” (Demurrer MPA, p. 6:4-8.) Cross-Complainant’s opposition is silent on what consideration supported the alleged contract. (Opposition, pp. 2:25-5:6.)

The Cross-Complaint alleges that “[w]hen the subject property at 1748 Landana Drive, Concord, CA was acquired, it was agreed that the cross-defendant’s sole interest in the property was to provide assistance to the plaintiff in acquiring financing so that plaintiff could purchase the property. As such, it was further agreed that cross-defendant would have no title interest in the property & that plaintiff would live in the property with the sole responsibility to pay the mortgage payment, taxes and insurance.” (Cross-Complaint, ¶ BC-1.)

The Court agrees with Cross-Defendant that the Cross-Complaint does not properly allege consideration. Section 1605 of the Civil Code provides the definition of consideration, which is “[a]ny benefit conferred, or agreed to be conferred, upon the promisor, by any other person, to which the promisor is not lawfully entitled, or any prejudice suffered, or agreed to be suffered, by such person, other than such as he is at the time of consent lawfully bound to suffer, as an inducement to the promisor, is a good consideration for a promise.” (Civ. Code, § 1605.) Here, the bargained for exchange, i.e., what Cross-Defendant sought from Cross-Complainant, is not alleged in the Cross-

Complaint.

Additionally, the Cross-Complaint (PLD-C-001 for breach of contract) has a portion that states, “agreement was made between (name parties to agreement)” and Cross-Complainant only listed the Cross-Defendant. (Cross-Complaint, ¶ BC-1.) It is not possible for the Cross-Defendant to have entered into a contract with herself and Cross-Complainant must clean up the breach of contract allegations in order to properly state a claim.

As a result of the above analysis, the Court sustains the demurrer to the first cause of action for breach of contract, with leave to amend, for failing to properly plead the requisite elements of a breach of contract claim.

Statute of Frauds

Cross-Defendant argues that the cause of action for breach of contract also fails because it is barred by the statute of frauds. The statute of frauds provides that certain contracts are invalid unless they are in writing and signed by the party to be charged. (Civil Code, § 1624.) In order to properly analyze the statute of frauds, a contract is required. Here, as discussed above, Cross-Complainant has failed to state a claim for breach of contract—thus, the Court is unable to rule on the statute of frauds argument.

Sufficiency of Fraud Allegations: Second Cause of Action

Cross-Defendant argues that Cross-Complainant’s second cause of action for fraud fails to properly allege all the requisite elements. (Demurrer MPA, pp. 7:23-8:16; Reply, pp. 5:25-6:24.) Cross-Complainant alleges three variations of fraud: intentional misrepresentation; concealment; and promise without intent to perform. (Cross-Complaint, pp. 4-5, ¶¶ FR-1 – FR-7.)

“The elements of fraud are ‘ (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or “scienter”); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” ’ ’ ’ (Charnay v. Cobert (2006) 145 Cal.App.4th 170, 184.) Further, fraud must be pled with particularity. (Hills Transportation Co. v. Southwest Forest Ind., Inc. (1968) 266 Cal.App.2d 702, 707.) With regard to fraud claims, pleadings must allege facts as to “how, when, where, to whom, and by what means the representations were tendered.” (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73.)

In support of the intentional misrepresentation claim (Civil Code, § 1710, subd. 1), Cross-Complainant alleges “that when the subject property @ 1748 Landana Drive, Concord, CA was acquired, she represented that her sole role in the purchase was to provide assistance so that plaintiff could qualify for a loan to acquire the property and that despite the fact that she was a joint tenant on the record of title, in truth and in fact, the plaintiff was intended to be the sole owner. As such, it was further agreed that the plaintiff would live on the property and pay all of the mortgage, insurance, taxes and improvements, which plaintiff has.” (Cross-Complaint, ¶ FR-2a.) Cross-Complainant further alleges “That cross-defendant Kelly made the above misrepresentations so that she could acquire a joint tenancy interest in the property, which she acquired by deed on April 23, 2019. As evidenced by a written demand on or about February 25, 2023, cross-defendant demanded that plaintiff sell the property and give her 50% of the net proceeds. When plaintiff refused, cross-defendant filed the

subject partition action falsely claiming her title interest in the property.” (Cross-Complaint, ¶ FR-2b.) The allegations that Cross-Defendant knew the representations were false and intended to induce Cross-Complainant to act, as well as justifiable reliance, are found at paragraphs FR-2c. to FR-2d of the Cross-Complaint.

“[T]he elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 868.) In support of his concealment claim (Civil Code, § 1710, subd. 3), Cross-Complainant alleges that Cross-Defendant concealed “that she would claim a 50% interest in the subject property despite her representations that the Plaintiff was the sole owner of the property.” (Cross-Complaint, ¶ FR-3a.) Cross-Complainant also alleges that the concealment occurred by stating certain facts to mislead and prevent Cross-Complainant from discovering the concealed facts, and that Cross-Defendant concealed the facts with an intent to defraud and induce Cross-Complainant to act. (Cross-Complaint, ¶ FR-3b-c.) Cross-Complainant also alleges that he was unaware of the concealed facts and would not have taken the action he did had he known the facts. (*Id.* at ¶ FR-3c.) The Cross-Complaint fails to specify what “certain facts” were stated, by whom they were stated, to whom they were stated, or when they were stated to mislead and prevent Cross-Complainant from discovering the concealed facts.

“To maintain an action for deceit based on a false promise, one must specifically allege and prove, among other things, that the promisor did not intend to perform at the time he or she made the promise and that it was intended to deceive or induce the promisee to do or not do a particular thing.” (*Building Permit Consultants, Inc. v. Mazur* (2004) 122 Cal.App.4th 1400, 1414.) In support of the promise without intent to perform claim (Civil Code, § 1710, subd. 4), Cross-Complainant alleges that “Cross-defendant Kelly promised to plaintiff that despite the fact that the grant deed on April 23, 2019 on the subject property listed her as a joint tenant she would not assert or claim any title interest in the property and that her sole role in the acquiring of the property was to insure that plaintiff could qualify for the mortgage on the property.” (Cross-Complaint, ¶ FR-4.) These allegations suffer from a lack of specificity similar to what has been described above: when was the promise made, what facts show that the promise was made with an intent to deceive or induce the promisee to do or not do a particular thing?

Here, the Cross-Complainant’s intentional misrepresentation, concealment, and promissory fraud claims are insufficiently pled because the Cross-Complaint does not allege facts to show where the fraud occurred (concealment, intentional misrepresentation, and promise without intent to perform) or by what means the representations were rendered (intentional misrepresentation and promise without intent to perform). (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.) Thus, the Court sustains Cross-Defendant’s demurrer to the fraud cause of action, with leave to amend.

Unjust Enrichment: Third Cause of Action

Cross-Defendant argues that in this claim fails because “the facts and filings in this matter clearly

show that [Cross-Defendant] has not been enriched at [Cross-Complainant's] expense." (Demurrer MPA, p. 9:1-2.) Cross-Complainant argues that "[s]hould [Cross-Defendant] be allowed to proceed with the partition as she has requested, ***she would receive a benefit*** of a windfall in the hundreds of thousands. . ." (Opposition, p. 5:19-21 [italics and boldface added].)

"The elements of an unjust enrichment claim are the 'receipt of a benefit and [the] unjust retention of the benefit at the expense of another.' " (*Peterson v. Cellco Partnership* (2008) 164 Cal.App.4th 1583, 1593.) "Traditionally at common law, a cause of action accrues when [it] is complete with all of its elements—those elements being wrongdoing, harm, and causation. . . . This is the 'last element' accrual rule" (*Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1191.) Here, this cause of action has not yet accrued because as Cross-Complainant admits in the opposition, Cross-Defendant has not yet received any benefit, which means that this claim is not ripe. None of the elements are met—Cross-Defendant has not received any benefit nor unjustly retained any benefit at the expense of another. The Court sustains Cross-Defendants' demurrer to the third cause of action for unjust enrichment with leave to amend.

Statute of Limitations – Entire Cross-Complaint

Cross-Defendant argues that the entire Cross-Complaint, filed September 11, 2025, is barred by the statute of limitations for an oral contract. (Demurrer MPA, p. 9; Reply, p. 7.) The statute of limitations for an oral contract is two years. (CCP § 339(1).) Cross-Defendants argue the two year period was exceeded because the alleged breach of the oral contract occurred February 25, 2023 and the Cross-Complaint was filed on September 11, 2025.

First, the statute of limitation for oral contracts cannot be applied to bar the Cross-Complaint as a whole because the Cross-Complaint also contains claims for fraud and unjust enrichment, which both carry three-year limitations periods. (CCP § 338(d).)

Second, the date of the alleged breach of the oral contract asserted by Cross-Defendant differs from what is actually plead in the Cross-Complaint. Cross-Defendant asserts that the breach of oral contract occurred in 2023 because the Cross-Complaint "alleges that on or about February 25, 2023, Purefoy in a breach of the alleged agreement, claimed fifty percent ownership in the Subject Property and demanded that Drummer obtain another mortgage and pay her the proceeds owed to her as a joint tenant owner in the Subject Property." (Demurrer MPA, p. 9:13-16, Reply, p. 7:28 - 8:2.) However, the two-year statute of limitations does not bar the breach of contract claim here because the Cross-Complaint expressly alleges that the breach of contract occurred on April 8, 2025, when Cross-Defendant filed the Complaint in instant lawsuit, rather than on February 25, 2023. (Cross-Complaint, ¶ BC-2.)

Cross-Defendant argues that "[t]he date of filing the partition action was merely additional acts of her alleged prior breach." (Reply, p. 8:4-5.) The Court disagrees. Simply asking Cross-Complainant to sell the Property and give her 50% of the proceeds is not a breach by itself. " " "A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar ... to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred." ' ' ' (*Lee v. Hanley* (2015) 61 Cal.4th 1225, 1232.) Here, there is not a defect on the face of the Cross-Complaint that clearly and affirmatively shows a violation of the statute of limitations.

Ruling on the Demurrer

The Court sustains Cross-Defendant's demurrer to the first (breach of contract), second (fraud), and third (unjust enrichment) causes of action, with leave to amend. Cross-Complainant may file and serve an amended cross-complaint within 20 days of notice of entry of this order. (CCP, §472b; CRC, rule 3.1320(g).)

11. 9:00 AM CASE NUMBER: C25-01064
CASE NAME: WILTON SHORT VS. FRANKLIN CREDIT MANAGEMENT CORP.
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: FRANKLIN CREDIT MANAGEMENT CORP.
TENTATIVE RULING:

Defendant's Hearing on Demurrer to First Amended Complaint is continued to: June 05, 2026, at 9:00 a.m.

12. 9:00 AM CASE NUMBER: C25-02606
CASE NAME: JAMEIZ TERRELL VS. BISA FRENCH
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: CITY OF RICHMOND
TENTATIVE RULING:

The Court continues the hearing on this motion to June 5, 2026 at 9:00 a.m.

13. 9:00 AM CASE NUMBER: MSC20-02420
CASE NAME: ROBINSON VS ANTIOCH UNIFIED SCHOOL
HEARING ON SUMMARY MOTION JUDGMENT/ADJUDICATION
FILED BY: ANTIOCH WATER PARK
TENTATIVE RULING:

Before the Court is Defendant City of Antioch and Antioch Water Park (collectively, "Defendants")'s motion for summary judgment ("MSJ"). The MSJ relates to Plaintiff Jayson Robinson ("Plaintiff")'s complaint for damages arising out of a drowning accident at a municipal water park. The motion relates to Plaintiff's First Amended Complaint for (1) Government Code § 815.2 (against City of Antioch) and (2) negligence (against all Defendants).

Defendants move for summary judgment or in the alternative summary adjudication on the grounds that Plaintiff's claims are barred by the assumption of risk affirmative defense.

For the following reasons, the MSJ is **denied**.

Legal Standard

Code of Civil Procedure ("CCP") §§ 437c(o)(1) and 437c(p)(2) provide the relevant legal standard for

deciding the Motion. Section 437c(o)(1) provides, in relevant part:

A cause of action has no merit if one or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded.

Section 437c(p)(2) provides, in relevant part:

A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if that party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) The scope of the defendant's initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal.App.3d 1, 18.)

Brief Factual and Procedural Background

Plaintiff Jayson Robinson was 11 years old on May 28, 2019 and a fifth grader at Jack London School of Antioch Unified School District when he attended a field trip to the Antioch Water Park. (Deft. UMF 1-3.) Philana Stearne signed a permission slip from the school for Plaintiff to attend the field trip which indicated Plaintiff did not know how to swim. (Walker Decl. at ¶ 6, Ex. 5.) Plaintiff became dizzy and passed out while underwater. (Deft. UMF 10,11.) Plaintiff was underwater for an unknown period of time. (Pltf. UMF 19.) He was discovered underwater by two students who felt him at the bottom of the pool near their legs. (Pltf. UMF 21.)

On the date of the incident, Plaintiff remembers stepping out and not being able to put his head above the water. Plaintiff went under the water and tried to swim back to the surface but was unable and passed out. (Pltf. UMF 23.) The children that discovered Plaintiff pulled him to the surface where they noticed he was unconscious. (Pltf. UMF 24.) The student that initially pulled Plaintiff above the water, dropped Plaintiff, at which point Plaintiff sunk back to the bottom of the pool. The students then yelled for help. (Pltf. UMF 26.) Mr. Kent, a teacher from another school, jumped off of the "lily pads" and swam to Plaintiff, pulling him above the water. Mr. Kent then took Plaintiff all the way to the side of the pool before he was finally assisted by a lifeguard. (Pltf. UMF 27.)

It is undisputed that permission slips from the school were never turned over to the Water Park, as the Water Park never requested them, or the information that was contained within. (Pltf. UMF 8.) There is no evidence that a safety briefing took place, and it is undisputed that floatation devices were not mandated. (Pltf. UMF 11.) Without a safety briefing, without a swimming assessment, and without knowledge that Plaintiff was unable to swim, Defendants permitted Plaintiffs to enter the

pool at the Water Park without a floatation device and with minimal supervision. (Pltf. UMF 14.) It is also undisputed that one of the lifeguards who was responsible for watching Plaintiff moved slowly when they were alerted of a drowning child. (Pltf. UMF 28.)

Plaintiff filed his original complaint for damages on November 24, 2020. The City of Antioch filed a Cross-Complaint against Antioch Unified School District for (1) comparative equitable indemnity; (2) total equitable indemnity; (3) express indemnity; and (4) declaratory relief on May 5, 2021. Plaintiff filed an amended complaint on November 23, 2021. On March 16, 2022 Plaintiff dismissed Defendant Antioch Unified School District. While there have been several discovery motions, this is the first substantive motion relating to the pleadings.

Analysis

As a threshold issue, Plaintiffs argue that Defendants' motion for summary judgment is defective for failure to comply with California Rule of Court Rule 3.1350.

Defendants' separate statement fails to comply with California Rules of Court, Rule 3.1350.

On a motion for summary adjudication, the separate statement must tie each "undisputed material fact" to the particular claim, defense or issue sought to be adjudicated. (Cal. Rules of Ct, Rule 3.1350(b).) Specifically, California Rules of Court, Rule 3.1350(b) states:

"If made in the alternative, a motion for summary adjudication may make reference to and depend on the same evidence submitted in support of the summary judgment motion. If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts."

Here, the separate statement does not tie each "undisputed material fact" to the specific cause of action to be adjudicated. Instead, Defendants provide a list of "undisputed material facts" that apply to both causes of action on which Defendants seek summary adjudication.

When multiple causes of action, issues or defenses are presented for summary adjudication in one motion, each cause of action, issue or defense to which the motion is directed must have a separate section heading indicating the issue number and specifying the issue. (Cal. Rules of Ct., Rule 3.1350(d).)

Specifically, California Rules of Court, Rule 3.1350(d) states: "(1) The Separate Statement of Undisputed Material Facts in support of a motion must separately identify: [¶] (A) Each cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion; and [¶] (B) Each supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion."

This procedural deficiency makes it difficult for the court to efficiently resolve the motion, as "[t]he parties' separate statements 'are intended to permit the judge to determine quickly whether the motion is supported by sufficient undisputed facts. If the opposing statement disputes an essential

fact alleged in support of the motion, the judge merely has to review the evidence cited in support of that fact. This saves the judge from having to review all the evidentiary materials filed in support of and in opposition to the motion.” (*St. Paul Mercury Ins. Co. v. Frontier Pac. Ins. Co.* (2003) 111 Cal.App.4th 1234, 1248.)

It is within the trial court’s discretion to deny a summary judgment motion when the moving party fails to comply with the separate statement requirement. (*Wall Street Network, Ltd. v. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1189; Code Civ. Proc. § 437c, subdivision (b)(1) [“The failure to comply with this requirement of a separate statement may in the court’s discretion constitute a sufficient ground for denying the motion.”])

Notwithstanding this procedural defect, the Court reaches the merits of Defendants’ motion. Defendants are cautioned to comply with Court Rules in future filings.

Release (Express Assumption of the Risk)

First, Defendants argue that express assumption of the risk bars Plaintiff’s claims because Plaintiff and his mother signed a waiver releasing Defendants.

“‘[C]ontract principles apply when interpreting a release, and ... normally the meaning of contract language, including a release, is a legal question, not a factual question. [Citation.]’” (*Brown v. El Dorado Union High School Dist.* (2022) 76 Cal.App.5th 1003, 1023 (*Brown*), quoting *Solis v. Kirkwood Resort Co.* (2001) 94 Cal.App.4th 354, 360.)

“When an individual signs an express waiver of liability, he ‘promises not to exercise the right to sue for harm caused in the future by the wrongful behavior of a potential defendant, eliminating a remedy for wrongdoing.’” (*Brown, supra*, 76 Cal.App.5th at p. 1023, quoting *Coates v. Newhall Land & Farming, Inc.* (1987) 191 Cal.App.3d 1, 7 (*Coates*).) “Similarly, in signing an express assumption of risk, ‘the potential plaintiff agrees not to expect the potential defendant to act carefully, thus eliminating the potential defendant’s duty of care, and acknowledging the possibility of negligent wrongdoing. Both agreements permit behavior that normally would be actionable as tortious, although an express assumption of risk goes further, more clearly authorizing this behavior.’” (*Ibid.*, quoting *Coates, supra*, 191 Cal.App.3d at pp. 7-8.)

““In its most basic sense, assumption of risk means that the plaintiff, in advance, has given his express consent to relieve the defendant of an obligation of conduct toward him, and to take his chances of injury from a known risk arising from what the defendant is to do or leave undone *The result is that the defendant is relieved of legal duty to the plaintiff; and being under no duty, he cannot be charged with negligence.*” (Prosser & Keeton on Torts [(5th ed. 1984)] § 68, pp. 480-481, fn. omitted, second italics added.)” (*Brown, supra*, 76 Cal.App.5th at p. 1023, quoting *Knight v. Jewett* (1992) 3 Cal.4th 296, 338, fn. 4 (*Knight*).)

““[C]ases have consistently held that the exculpatory provision may stand only if it does not involve ‘the public interest.’” (*Brown, supra*, 76 Cal.App.5th at p. 1023, quoting *Tunkl v. Regents of University of Cal.* (1963) 60 Cal.2d 92, 96.) “Releases of negligence claims are not per se against the public interest.” (*Ibid.*, citing *Solis v. Kirkwood Resort Co.* (2001) 94 Cal.App.4th 354, 360.) “Similarly, ‘[e]xculpatory agreements in the recreational sports context do not implicate the public interest and

therefore are not void as against public policy.” (*Id.* at p. 1024, quoting *Benedek v. PLC Santa Monica* (2002) 104 Cal.App.4th 1351, 1356-1357 (*Benedek*).)

“However, ‘an agreement made in the context of sports or recreational programs or services, purporting to release liability for future gross negligence, generally is unenforceable as a matter of public policy.’” (*Brown, supra*, 76 Cal.App.5th at p. 1024, citing *City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747, 751.) “Thus, in the recreational context, while a waiver of liability and assumption of risk can serve as a bar to liability based on negligence, it cannot serve as a bar to liability based on gross negligence.” (*Ibid.*)

“California courts require a high degree of clarity and specificity in a Release in order to find that it relieves a party from liability for its own negligence. The release must ‘clearly, explicitly and comprehensibly set forth to an ordinary person untrained in the law that the intent and effect of the document is to release his claims for his own personal injuries and to indemnify the defendants from and against liability to others which might occur in the future as a proximate result of the negligence of [the] defendants’” [Citation omitted.]” (*Brown, supra*, 76 Cal.App.5th at p. 1024, quoting *Cohen v. Five Brooks Stable* (2008) 159 Cal.App.4th 1476, 1488-1489, italics omitted.) “To be effective, a release need not achieve perfection; ... It suffices that a release be clear, unambiguous, and explicit, and that it express an agreement not to hold the released party liable for negligence. [Citation.]” (*Ibid.*, quoting *Nat’l & Internat. Bhd. of St. Racers, Inc. v. Superior Court* (1989) 215 Cal.App.3d 934, 938.)

““It is only necessary that the act of negligence, which results in injury to the releasor, be reasonably related to the object or purpose for which the release is given.”” [Citation.] The issue is not whether the particular risk of injury is inherent in the recreational activity to which the release applies, but rather the scope of the release. [Citations.] An act of negligence is reasonably related to the object or purpose for which the release was given if it is included within the express scope of the release. [Citation.]” (*Brown, supra*, 76 Cal.App.5th at p. 1024, quoting *Benedek, supra*, 104 Cal.App.4th at pp. 1357-1358.)

In *Brown*, the release stated in part:

In consideration for EDUHSD, allowing the above-named students to participate in the school-related activity/ies specified above, I/we voluntarily agree to release, waive, discharge, and hold harmless the EDUHSD and its trustees, officers, employees, and agents from any and all claims of liability arising out of their negligence, or any other act or omission which causes the above-named student illness, injury, death or damages of any nature in any way connected with the student's participation in the school-related activity/ies. I/We also expressly agree to release and discharge EDUHSD, its trustees, officers, employees, and agents from any act or omission of negligence in rendering or failing to render any type of emergency or medical services.

(*Brown, supra*, 76 Cal.App.5th at p. 1010.)

The Court of Appeal affirmed the trial court’s order granting the defendant’s motion for summary judgment, observing that the release signed by the student’s father “covered all allegedly negligent

acts by coaches, and any other employee or volunteer, while they were engaged in ‘coach[ing], train[ing], instruct[ing], or supervis[ing]’ in football” and “also applied to negligent acts by coaches, and any other employees or volunteers, involved in diagnosing and/or treating [the plaintiff] for potential injuries suffered while he was engaged in playing football.” (*Brown, supra*, 76 Cal.App.5th at p. 1024.)

Here, in support of Defendants’ motion for summary judgment, Defendants’ provided a true and correct copy of a “Field Trip Involving Water Activities Permission Form” signed by Plaintiff and his guardian ad litem, Philiana Stearne. That document provides in part:

Please read this document carefully before signing. It contains important information and advises of certain risks. Participant and family are asked to acknowledge and assume risks and waive claims they might have in the event of injury or other loss. This document must be signed by the Participant (student) and by at least one parent or legally appointed guardian. If the Participant (student) is over the age of 18, he/she can Sign on behalf of him/her self.

No swimming or wading shall be allowed on trips unless planned and approved in advance. Swimming in a pool at a private residence, water skiing, recreational boating, and white water rafting are strictly prohibited.

Parents/guardians must provide written permission for the students to swim and must indicate the student’s swimming ability. Lifeguards must be designated and on duty for all swimming activities. If lifeguards are not provided by the pool owner or operator, the principal shall insure their presence. Lifeguards must be certified by the American Red Cross in Adult CPR, Standard First Aid and Lifeguard Training and must be a least 21 years old.

In grades 4-6 the ratio of adult chaperones to students shall be one to eight. In grades K-3, this ratio shall become one to four. Specific supervisory responsibilities shall be determined in advance to accommodate the varying swimming abilities of students. These responsibilities shall be clarified in writing and reviewed verbally before the trip.

Staff and chaperones assigned to supervise students must wear swimsuits and be able to swim.

Students may be required to wear flotation devices depending on their age and swimming ability.

Before any students are allowed to begin any water activity, a review of the rules must be provided. The rules must be strictly enforced and particular attention given to any posted signage.

(Walker Decl. at ¶ 6, Ex. 5.)

Plaintiff argues that the above is a Permission Slip and not a wavier of liability. Specifically, Plaintiff argues that the purported release language (“Participant and family are asked to acknowledge and

assume risks and waive claims they might have in the event of injury or other loss”) does not unambiguously delineate the scope of the purported waiver, as required. (Opp. at 8:6-8 [citing *Scroggs v. Coast Community College Dist.* (1987) 193 Cal.App.3d 1399, 1404].) The Court is inclined to agree. The purported waiver is ambiguous regarding its scope. As a consequence, Defendants have not carried their initial burden of showing that ““the act of negligence, which results in injury to the releasor, [is] reasonably related to the object or purpose for which the release [was] given.”” (*Brown, supra*, 76 Cal.App.5th at p. 1024, quoting *Benedek, supra*, 104 Cal.App.4th at pp. 1357-1358; see *ibid.* [“The issue is not whether the particular risk of injury is inherent in the recreational activity to which the release applies, but rather the scope of the release. [Citations.] An act of negligence is reasonably related to the object or purpose for which the release was given if it is included within the express scope of the release. [Citation.]”].)

Defendants also attempt to impute the waiver between Teresa Romo of Kimball Elementary School and Antioch Water Park to Plaintiff. The legal basis for this argument is unclear as neither Plaintiff nor his guardian ad litem are signatories to this agreement. Additionally, Plaintiff has dismissed Antioch Unified School District as a Defendant. On reply, Defendants appear to have abandoned this argument and instead focused on primary assumption of the risk.

The Court concludes that Defendants have not carried their initial summary judgment burden on express assumption of the risk. Summary judgment on this issue is denied.

Primary Assumption of the Risk

Finally, Defendants argue that the primary assumption of the risk doctrine precludes Plaintiff’s claims.

The primary assumption of the risk doctrine bars a plaintiff’s recovery for negligence when “it can be established that, because of the nature of the activity involved and the parties’ relationship to the activity, the defendant owed the plaintiff no duty of care.” (*Neighbarger v. Irwin Industries, Inc.* (1994) 8 Cal.4th 532, 538; see also *Avila v. Citrus Community College Dist.* (2006) 38 Cal.4th 148, 161 [“[p]rimary assumption of the risk arises when, as a matter of law and policy, a defendant owes no duty to protect a plaintiff from particular harms”].) “The doctrine of ‘primary’ assumption of risk developed as an exception to the general rule that all persons have a duty to use due care to avoid injury to others. . . . Primary assumption of risk is a complete bar to recovery.” (*Childs v. County of Santa Barbara* (2004) 115 Cal.App.4th 64, 69 [citation omitted].)

“Primary assumption of the risk is an objective test. It does not depend on a particular plaintiff’s subjective knowledge or appreciation of the potential for risk. ... Whether a duty exists ‘does not turn on the reasonableness or unreasonableness of the plaintiff’s conduct, but rather on [1] the nature of the activity or sport in which the defendant is engaged and [2] the relationship of the defendant and the plaintiff to that activity or sport.’ If a duty is found not to exist, primary assumption of risk applies, and a defendant is liable only if he intentionally injures the plaintiff or engages in conduct so reckless as to be totally outside the range of the ordinary activity involved in the sport or activity.” (*Saville v. Sierra College* (2005) 133 Cal.App.4th 857, 866 [citing *Knight v. Jewett* (1992) 3 Cal.4th 296, 313].) There is also a duty not to unreasonably increase the risks of injury to participants beyond those inherent in the activity. (*Nalwa v. Cedar Fair, L.P.* (2012) 55 Cal.4th 1148, 1162.) The doctrine of primary assumption of risk applies “where ‘conditions or conduct that otherwise might be viewed as

dangerous often are an integral part of the sport [or activity] itself.” (*Saville, supra*, 133 Cal.App.4th at p. 867 [citation omitted].)

To evaluate the applicability of the primary assumption of risk doctrine, a court must examine “the nature of the sport itself,” as well as “the defendant’s role in, or relationship to, the sport.” (*Knight, supra*, 3 Cal.4th at p. 317.) “[T]he primary assumption of risk doctrine is not limited to activities classified as sports, but applies as well to other recreational activities ‘involving an inherent risk of injury to voluntary participants . . . where the risk cannot be eliminated without altering the fundamental nature of the activity.’” (*Nalwa, supra*, 55 Cal.4th at p. 1156 [citing *Beninati v. Black Rock City, LLC* (2009) 175 Cal.App.4th 650, 658].)

In *Knight*, the California Supreme Court stated that the question when assumption of the risk doctrine is presented in summary judgment is not the reasonableness of Plaintiff’s choice to participate in the risky activity but “whether, in light of the nature of the sporting activity in which defendant and plaintiff were engaged, defendant’s conduct breached a legal duty of care to plaintiff.” (*Id.* at p. 315.)

Where the primary assumption of the risk doctrine applies, “a participant in an active sport breaches a legal duty of care to other participants—i.e., engages in conduct that properly may subject him or her to financial liability—only if the participant intentionally injures another player or engages in conduct that is so reckless as to be totally outside the range of the ordinary activity involved in the sport.” (*Id.*, at p. 320.)

“[T]he question of duty depends not only on the nature of the sport, but also on the role of the defendant whose conduct is at issue.” (*Kahn, supra*, 31 Cal.4th at p. 1004.)

Duties with respect to the same risk may vary according to the role played by particular defendants involved in the sport. In the sport of baseball, for example, although the batter would not have a duty to avoid carelessly throwing the bat after getting a hit—vigorous deployment of a bat in the course of a game being an integral part of the sport—a stadium owner, because of his or her different relationship to the sport, may have a duty to take reasonable measures to protect spectators from carelessly thrown bats. For the stadium owner, reasonable steps may minimize the risk without altering the nature of the sport.

(*Ibid.*)

Defendants argue that primary assumption of risk applies because Plaintiff was swimming recreationally and that “[g]iven swimming’s inherent risks of drowning, the doctrine of primary assumption of the risk applies.” (Motion at 8:12-13 [citing *Nalwa, supra*, at 1156-1157].) Defendants further argue that they “are not liable for a breach of their duty of care to Plaintiff unless the defendants engaged in reckless conduct that increased the dangers of swimming for him.” (*Id.* at 8:18-20 [citing *Kahn v. East Side Union High School Dist.* (2003) 31 Cal.4th 990].)

In opposition, Plaintiffs argue that the doctrine of primary assumption of the risk “does not apply where the public pool has a duty to the injured party.” (Opp. at § IV(C).) They argue that the water park, as a public swimming pool, had a statutory duty “to monitor and maintain the safety of its patrons at the Water Park, which it negligently failed to do.” (Opp. at 12:9-10.) Plaintiffs also argue

that the City increased the risk to Plaintiff and breached its duty by “[f]ailing to ensure lifeguards were monitoring all areas of the pool; [f]ailing to enforce flotation vest requirements for non-swimmers; [a]llowing minors into the deep end without supervision or assessment; and [d]elaying rescue response after Jayson was underwater.” (*Id.* at 13:5-9.)

On reply, Defendants argue that the statutory duties argument is not relevant for failure to plead liability under Government Code section 815.6 in the First Amended Complaint. They also argue (without citation) that “Defendants’ response to inherent risks ... does not create duty under controlling California Supreme Court authority.” (Reply at 4:4-6.) They further argue that “[a]llegations concerning supervision, staffing, or safety practices do not constitute risk-increasing conduct and therefore do not create a triable issue of material fact.” (*Id.* at 4:8-10.)

As the Court noted above, the scope of the Defendants’ initial burden is defined by the pleadings. (See *580 Folsom Assocs.*, *supra*, 223 Cal.App.3d at p. 18.) Here, the operative complaint does not plead a cause of action under Government Code section 815.6 for liability for failure to discharge statutory duty. Consequently, Plaintiffs’ reliance on statutory duties to monitor its patrons at the water park is unavailing.

However, there can be no dispute that Defendants had a duty to exercise care in the maintenance of the water park for the benefit of its patrons. (See Civ. Code § 1714 [“Everyone is responsible . . . for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property or person, except so far as the latter has, willfully or by want of ordinary care, brought the injury upon himself or herself”]; see also *Rowland v. Christian* (1968) 69 Cal.2d 108, 119 [application of Civ. Code § 1714 “entails an inquiry as to ‘whether in the management of his property [the owner] has acted as a reasonable [person] in view of the probability of injury to others’ ”].) As a preliminary matter, the primary assumption of the risk doctrine applies to the activity at issue here: engaging in recreational swimming. As one court has noted, “There are risks inherent in the sport of swimming, such as drowning, hitting the wall or pool floor, or colliding with another swimmer.” (*Capri v. L.A. Fitness Intern, LLC* (2006) 136 Cal. App. 4th 1078, 1088.) This operates as a bar to plaintiff’s recovery unless the defendant owes a duty to the plaintiff and the Defendants either acted with an intent to cause injury to Plaintiff, or increased the inherent risks in the activity and acted recklessly by engaging in conduct that was totally outside the range of ordinary activity involved in the activity. [See, e.g., *Knight, supra*, 3 Cal.4th at p. 313; see also *Kahn, supra*, at 31 Cal.4th at p. 1004.]

Here, there is no indication that any of Defendants acted with an intent to cause an injury to Plaintiff. Therefore, the issue is whether there is any evidence in the record that would support a determination that Defendants increased the inherent risks in recreational swimming and acted recklessly by engaging in conduct that was totally outside the range of ordinary activity involved in recreational swimming.

The Court concludes that whether the conduct of the Defendants or other participants was so reckless as to be totally outside the range of the ordinary activity involved in the activity at issue is a question of fact (although, like other questions of fact, it can be decided as a matter of law where the facts are undisputed and only one reasonable inference can be drawn therefrom). (E.g., *Kahn, supra*, 31 Cal.4th at p. 1013; *Shin v. Ahn* (2007) 42 Cal.4th 482, 499-500 [stating that the trier of fact must “determine[e] whether defendant acted recklessly” while playing the sport of golf]; *Wellsfry v. Ocean*

Colony Partners, LLC (2023) 90 Cal.App.5th 1075, 1091 [affirming summary judgment where there was “no evidence in the record from which a reasonable trier of fact could find that [defendant] ... increased the risk of injury”]; *Foltz v. Johnson* (2017) 16 Cal.App.5th 647, 656, 661; *Luna v. Vela* (2008) 169 Cal.App.4th 102, 113 [“it is for the trier of fact to determine whether [defendant] breached his limited duty not to increase the risks inherent in the sport”].)

On this record, the Court finds that the primary assumption of the risk doctrine applies but there are triable issues of fact as to whether Defendants engaged in conduct that was reckless in that it was totally outside the range of the ordinary activity involved in supervising the recreational activity of swimming and thereby breached the limited duty not to increase the risks inherent in that activity. Specifically, whether the failure to provide a safety briefing, swimming assessment (or otherwise identify non-swimmers), or mandate or make available floatation devices increased the risk of injury inherent in swimming at the recreational water park.

The Defendants motion for summary judgment and in the alternative for summary adjudication is **denied**.

Objections to Evidence

The Court need only rule on those objections to evidence that were material to the disposition of the MSJ. (See CCP § 437c(q).) Here, there were none.

Discovery Law & Motion

14. 9:01 AM CASE NUMBER: C24-02695
CASE NAME: CUSHMAN & WAKEFIELD U.S., INC. VS. BROOKS PEDDER
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES FROM XD CHATHAM TO REQUEST FOR ADMISSIONS, SET 1**
FILED BY: PEDDER, BROOKS
TENTATIVE RULING

Parties submitted a Joint Stipulation to continue hearing to: April 13, 2026.

15. 9:01 AM CASE NUMBER: C24-02695
CASE NAME: CUSHMAN & WAKEFIELD U.S., INC. VS. BROOKS PEDDER
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES FROM XD CHATHAM TO REQUEST FOR PROD, SET 1**
FILED BY: PEDDER, BROOKS
TENTATIVE RULING

Parties submitted a Joint Stipulation to continue hearing to: April 13, 2026.

16. 9:01 AM CASE NUMBER: C24-02695

CASE NAME: CUSHMAN & WAKEFIELD U.S., INC. VS. BROOKS PEDDER

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES FROM XD CHATHAM TO
SPECIAL INTEROGS, SET 1**

FILED BY: PEDDER, BROOKS

TENTATIVE RULING:

Parties submitted a Joint Stipulation to continue hearing to: April 13, 2026.